

Court No. - 3

Case :- WRIT - C No. - 9161 of 2018

Petitioner :- M/S Bansal Agro Farm And Another

Respondent :- U.P. Power Corp. Ltd. And 2 Others

Counsel for Petitioner :- Vashishtha Tiwari

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi, Pankaj Srivastava

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Put up day after tomorrow i.e. 22.03.2018 by which time counsel for the Electricity Board would produce the demand bill alleged to have been issued against the petitioners.

Order Date :- 20.3.2018

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Srivastava

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri Vashishtha Tiwari, learned counsel for the petitioners and Sri Shrawan Kumar Tripathi, learned counsel appearing for respondents no. 1 and 2.

The petitioner is aggrieved by the demand notice dated 3.3.2018 issued by the Executive Engineer, Dakshinchal Vidhut Vitran Nigam Limited for recovery of Rs. 15,51,868/- as electricity charges.

It appears that the electricity bill dated 29.1.2018 including arrears of electricity charges was raised against the petitioner for a sum of Rs. 15,51,868/- . On account of non payment of the said dues, the impugned recovery has been issued.

Learned counsel for the petitioners submits that they have been disputing the aforesaid demand and even the arrears but the departmental authority failed to take any action thereof. Notwithstanding any dispute regarding electricity charges raised by the petitioners in the past, we are concerned with the present demand as raised vide bill dated 29.1.2018.

Since the petitioners are disputing the correctness of the said bill, the same can be resolved by taking recourse to clause 6.5 of the Electricity Supply Code, 2005 which provides if there is any dispute regarding accuracy of any bill, consumer can file a complaint before the competent authority which shall be decided within 7 days subject to consumer depositing the amount of the bill claimed or the electricity charges on the basis of the average of the preceding six months.

In order to avoid all controversy regarding any deposit of the amount, we dispose of the writ petition directing the petitioners to deposit a *lump sum* amount of Rs. 5 lacs within a month and to raise the dispute in accordance with Clause 6.5 of the Electricity Supply code, 2005 before the competent authority. The same shall be considered and decided in accordance with law most expeditiously and till its decision or for a period of three months from today whichever is earlier, the balance

recovery as per the impugned citation dated 29.1.2018 shall remain stayed.

Order Date :- 22.3.2018
SKS